

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 12
SEPTEMBER 09, 2026
8:30 a.m.

1. ANDREW EAMES V. KATIE ROGERS

SFL20210104

This matter is before the court for a five-year dismissal hearing pursuant to Code of Civil Procedure section 583.310, which provides, “[a]n action shall be brought to trial within five years after the action is commenced against the defendant.” (Code Civ. Proc., § 583.310.) The action was filed on July 22, 2021.

On August 05, 2026, the court mailed notice of this hearing to Petitioner at his address on file with the court. However, the notice was returned undeliverable.

The court intends to dismiss the action pursuant to Code of Civil Procedure section 583.310.

TENTATIVE RULING #1: PURSUANT TO CODE OF CIVIL PROCEDURE SECTION 583.310, THE COURT DISMISSES THE ACTION WITHOUT PREJUDICE.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT’S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 573-3042 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.RULE CT. 3.1308; LOCAL RULE 8.05.07.

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2. COLLEEN SIDEY V. BRYAN YERIAN

22FL0437

This matter is before the court for hearing of two separate Requests for Order (RFO). The first RFO was filed by the Respondent on July 28, 2026, to modify child support. The second RFO was filed by the Petitioner on August 24, 2026, to require Respondent to provide necessary documents to prepare the Qualified Domestic Relations Order (QDRO).

Respondent's RFO Filed July 28, 2026

Respondent concurrently filed with his RFO a current Income and Expense Declaration (I&E). Proof of service filed September 02, 2026, shows the RFO and I&E were electronically served upon Petitioner on July 28, 2026.

On August 24, 2026, Petitioner filed a Responsive Declaration and I&E, copies of which were electronically served upon Respondent that same day per the proof of service, also filed August 24, 2026.

Respondent has a zero percent custody timeshare of the minor child. As of December 31, 2025, he has been unemployed. However, as Petitioner points out in her Responsive Declaration, Respondent received a \$95,000 severance payment. Respondent's I&E does not indicate how much he earned at his most recent job. Without additional information, the court finds that Respondent's current gross monthly income is \$7,917 ($\$95,000 / 12 \text{ months} = \$7,916.66$, the court rounds up to the nearest dollar).

Petitioner declares her current gross monthly income is \$4,100. As shown in the attachment to her I&E submitted August 24, 2026, she earned \$4,293.75 the previous month. Petitioner also declares she has a monthly expense of \$51.00 (rounded up to the nearest dollar from \$50.49) for health insurance.

As shown in the attached XSpouse calculation printout, Respondent is ordered to pay Child Support to the Petitioner in the amount of \$1,458.00 beginning August 01, 2026, and the first of each month thereafter until further order of the court.

Petitioner's RFO Filed August 24, 2026

Petitioner's RFO included a request for order shortening time. On August 24, 2026, the court granted the request, ordering Petitioner to serve the RFO on or before August 28, 2026, and ordering Respondent to file and serve a Responsive Declaration on or before September 02, 2026. To date, there is no proof of service of the RFO in the court's file. Due to the lack of service, the matter is dropped from the calendar.

TENTATIVE RULING #2:

RESPONDENT'S RFO FILED JULY 28, 2026: THE RFO IS GRANTED. RESPONDENT IS ORDERED TO PAY CHILD SUPPORT TO THE PETITIONER IN THE AMOUNT OF